23GDCV00821 23GDCV00821

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23GDCV00821 Hearing Date: August 7, 2026 Dept: D

TENTATIVE RULING

Calendar: Add-on

Date: August 07, 2026

Case No: 23GDCV00821 Trial Date: n/a

Case Name: Tovar v. Ford Motor Company, et al.

MOTION FOR ATTORNEYS’ FEES

[CCP § 1794 subd. (d)]

Moving Party: Plaintiffs, Miguel O. Tovar and Omar Giovanni Tovar

Responding Party: Defendant, Ford Motor Company

RELIEF REQUESTED:

Order awarding attorneys’ fees in the amount of $51,677.50 comprised of attorneys’ fees of $38,142.00, a 1.25x multiplier enhancement for $9,535.50, and $4,000.00 to review the opposition, draft a reply, and appear at the hearing.

CAUSES OF ACTION: from Complaint

1) Violation of Song-Beverly Act - Breach of Express Warranty

2) Violation of Song-Beverly Act - Breach of Implied Warranty

3) Violation of Song-Beverly Act – Section 1793.2

4) Negligent Repair

SUMMARY OF FACTS:

This case is a lemon-law action. Miguel O. Tovar and Omar Giovanni Tovar ("Plaintiffs") allege that on January 5, 2020, Plaintiff leased a 2020 Ford Mustang, for which Ford Motor Company ("Defendant") issued express warranties. Plaintiff alleges that the vehicle was delivered with defects and nonconformities to warranties. Plaintiff alleges that the defects and nonconformities to warranty manifested themselves within the express warranty period. The Complaint alleges that notwithstanding Plaintiff's entitlement, Defendant has failed to either promptly replace the new motor vehicle or to promptly make restitution in accordance with the Song-Beverly Act.

ANALYSIS:

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (CCP, § 1032 subd. (b).) Attorney fees are allowed as costs when authorized by contract, statute or law. (CCP, § 1033.5, subd. (a)(10)(B).)

In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. Civil Code section 1794 states:

"If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

(Civil Code, § 1794, subd. (d).)

Entitlement to Attorneys' Fees

The parties here do not dispute that Plaintiffs are the prevailing parties pursuant to a July 25, 2025, CCP § 998 Offer to Compromise which provides for an award of attorneys' fees, costs, and expenses to be determined by noticed motion. (Jacobsen Decl., ¶ 102.) Thus, Plaintiffs are the prevailing parties in this action and are entitled to a reasonable amount of attorneys' fees.

Reasonableness of Fees

Plaintiffs seek an award of attorneys' fees and expenses in the total amount of $51,677.50 consisting of: (1) $38,142.00 in attorneys' fees; (2) a 1.25x multiplier enhancement on the attorneys' fees and costs [or $9,535.50]; and (3) an additional $4,000.00 for Plaintiffs' counsel to review the opposition, draft a reply, and attend the hearing. The motion seeks approximately 91.3 hours of time spent by attorneys at Quill and Arrow, LLP at billing rates ranging from $350.00 to $550.00 per hour.

Hourly Rate

In determining a reasonable attorneys' fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084. 1095.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

"The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group, supra, 22 Cal.4th at p. 1095 ["The experienced trial judge is the best judge of the value of professional services rendered in his court."].)

In connection with attorneys' fee awards under the Song-Beverly Act, "The statute "requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of 'showing that the fees incurred were "allowable," were "reasonably necessary to the conduct of the litigation," and were "reasonable in amount." ' " (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470, quoting Nightingale v. Hundai Motor America (1994) 31 Cal.App.4th 99, 104.)

In the opposition, Defendant argues that the billing rates charged are excessive. Defendant requests that Court reduce the rates to "$400 per hour for partners, $325 per hour for senior attorneys, and $300 per hour for associate attorneys." (Opp., p. 20:17-18.)

The moving papers submit evidence justifying the billing rates claimed, describing the experience and expertise of each attorney who billed on this matter (Jacobson Decl., ¶¶ 3-63.) The rates requested conform with what this Court would expect to be charged in matters of this nature. The Court has reviewed all evidence submitted and is familiar with the customary billing rates in this county and in cases of this nature. Under the circumstances, the Court finds the billing rates reasonable, and the Court will not reduce the billing rates charged. The Court will however, take into account the high hourly rates charged and counsels' attested levels of expertise when assessing whether the total number of hours expended was reasonable.

Number of Hours

Plaintiff's fee recovery is based on 91.3 hours of time spent litigating this case through the instant motion for which Plaintiff has submitted billing records. (Jacobson Decl., Ex. 34.) Defendant objects to Plaintiff's requested hours on the grounds that several of the billing entries are unreasonable. (Opp., pp. 15:8-17:22.)

"In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.)

First, Defendant objects to several entries as improper value billing. Defendant argues that Plaintiffs' counsel seeks excessive time for reviewing and/or preparing routine documents, reflecting counsel's perceived "value" of those tasks, rather than the actual time expended. (Opp., p.15:15-27; Cabibi Decl., Ex. A, pp. 5-7.) Upon review of the time entries, the Court finds that several entries are unreasonable. Specifically:

1.4 hours billed on June 26, 2025, to prepare and finalize Plaintiffs' objections to Defendant's deposition notice.

1.2 hours billed on July 1, 2025, to prepare and finalize Plaintiffs’ objections to Defendant’s notice of expert witness depositions.

1.6 hours billed on July 8, 2025, for prepare and finalize trial subpoenas for Defendants’ PMQ’s.

7.6 hours billed on July 14 and 15, 2025, to prepare and finalize Plaintiffs’ discovery responses.

0.7 hours billed on July 16, 2025, to review and analyze Defendant’s objections to Plaintiffs’ deposition notices.

These are standardized pleadings and discovery requests that, given Plaintiffs’ counsel’s professed level of experience in lemon law litigation, would reasonably have required only minimal time to prepare. The Court therefore reduces the requested time by 6 hours.

Accordingly, the Court will reduce the fees by $3,447.50.

Second, Defendant objects to Plaintiffs’ request for $4,000.00 in anticipated fees and costs to review the opposition, draft a reply and attend the hearing on this motion. (Opp., p. 16:1-9.) The Court agrees that the requested amount is unreasonably padded. Plaintiff’s billing records reflect that counsel spent 7.8 hours, totaling $3,081.00, to prepare the motion itself. (Jacobson Decl., Ex. 34.) Yet Plaintiffs seek a set $4,000.00 in anticipated fees for reviewing the opposition, preparing a reply, and attending the hearing. At counsel’s hourly rate of $395.00, this request equates to more than 10 hours of attorney time. The Court finds it unreasonable that preparing a reply and attending the hearing would require substantially more attorney time than preparing the motion itself. The Court finds a reasonable time spent to be no more than 1.0 hour to review the opposition, 3.0 hours to prepare the reply, and 1.0 hour to attend the hearing by video appearance. In total, 5.0 hours of attorney time at $395.00 per hour amounts to $1,975.00.

Accordingly, the Court will reduce the fees by $2,025.00

Third, Defendant objects to several entries as improperly block-billed and/or vague. Defendant argues that these entries are vague and ambiguous and should not be allowed. (Opp., pp. 16:10-17:22; Cabibi Decl., Ex. A, pp. 2-4.) Upon review of the time entries, the Court does not find that they are impermissibly block-billed or so vague as to prevent the Court from assessing the reasonableness of the time expended.

Accordingly, the Court declines to reduce the fees on this ground.

Fourth, Defendant objects to several entries as duplicative. (Cabibi Decl., Ex. A, p. 4.) Upon review, the Court finds that the 0.2 and 0.1 hours billed on July 10, 2025, to meet and confer re PMK deposition and the 0.1 and 0.3 hours billed on July 10, 2025, to meet and confer re Plaintiff deposition are duplicative. The Court therefore reduces the requested time by 0.4 hours.

Accordingly, the Court will reduce the fees by $160.00.

Having analyzed the motion and pleadings filed, and having reviewed the billing statements provided, the Court determines that a reasonable lodestar in this case is $36,509.50 representing 81.3 hours.

Multiplier

While the lodestar reflects the basic fee for comparable legal services in the community, it may be adjusted based on various factors, including "(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award" and (4) the success achieved. (Serrano v. Priest (1977) 20 Cal.3d 25, 49.)

Nonetheless, the court must not consider extraordinary skill and the other Serrano factors to the extent these are already included with the lodestar. (Ketchum v. Moses (2001) 24 Cal. 4th 1122, 1138-1139.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (Id. at 1139.)

Plaintiffs request a lodestar multiplier enhancement of 1.25x to account for the contingent nature of this litigation, the specialized skill involved, and the excellent results achieved. (Mot., pp. 12:1-15:16.)

The Court finds that under the circumstances of this case, a lodestar multiplier is not appropriate. There is no indication that counsel was prevented from taking on other clients by the representation. While counsel accepted the case on a contingency basis and Plaintiffs' attorneys advanced all litigation costs and expenses, the Court finds that such consideration and risk is already included within the lodestar amount. That conclusion is because the substantial hourly rates allowed for by the Court are hourly rates for lemon law cases done on a contingency basis.

Based on the foregoing, the Court declines to award a lodestar multiplier.

RULING:

Plaintiffs' Motion for Attorney Fees is GRANTED, IN PART.

The Court finds that reasonable attorney's fees are:

Lodestar Adjusted = $36,509.50 [$42,142.00 lodestar sought]

Total Award= $36,509.50

The total fee award of $36,509.50 [$51,677.50 sought] is to be awarded to Plaintiffs Miguel O. Tovar and Omar Giovanni Tovar against Defendant Ford Motor Company and added to the judgment.

Counsel for moving party is ordered to prepare a proposed form of judgment and submit it on eCourt by noon today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.